April 5, 2021

ARTICLE 7.3.B MISSION STATEMENT

To: Arbitrators/ U.S. Postal Service/American Postal Workers Union:

From: Lamont Brooks
Director
Clerk Division
American Postal Workers Union, AFL-CIO

Re: Article 7.3.B Mission Statement

This Mission Statement was developed as a result of erroneous arguments made by the U.S. Postal Service in regard to Article 7.3.B of the Collective Bargaining Agreement.

Article 7.3.B states, "the Employer shall maximize the number of full-time employees and minimize the number of part-time employees who have no fixed work schedules in Postal installations."

Many National Level Awards have resulted on this issue and have been misinterpreted. The APWU will clear up any misconceptions with evidence to avoid regular panel arbitrations from making decisions based on important relevant facts not presented at particular hearings.

The APWU will now discuss the National Level Arbitrations that have come into question, as well as a binding Step 4 Settlement;

National Level Arbitration: AB-N-3744, Arbitrator Garrett, January 26, 1976

This Arbitration was for Article 7.3. The case background clearly recognizes that no single part-time flexible was scheduled and worked eight (8) hours within 10 hours over the same five (5) days each week for a six-month period (so as to trigger the third sentence of Article 7, Section3). The Union believes that it easily would be possible to schedule specific individual flexibles for regular eight (8) hour days and to post such positions for bid. Arbitrator Garrett rules to convert to full-time based on the combing of part-time flexible hours.

Step 4 NC-NAT-8872, August 4, 1977

It is important to look carefully at the dispute filed by the NALC (when all Unions were still merged) on Article 7.3. President Joseph Vacca states it has come to his attention that Postal management has taken the position that Article 7.3. is limited to only when there is evidence that the same part-time flexible employee has been working the same eight (8) hours within 10 hours on the same five (5) days each week on the same assignment over a six (6) month period is the only mechanism to convert to full-time. The NALC goes on to state they disagree and believe that if multiple part-time flexibles perform eight (8) hours with 10 hours work on five (5) days in a service week over a six (6) month period, a conversion should also take place.

The U.S. Postal Service replies that perhaps there is some misunderstanding on the U.S. Postal Service's position relative to the application of Article 7.3. The need to establish a full-time assignment is not determined exclusively by the third sentence of Article 7.3. They go on to say that there can be other circumstances which might support the conclusion that a full-time position is warranted. The U.S. Postal Service goes on to say no interpretive dispute exists on this issue.

National Level Arbitration NC-E-9358, Arbitrator Gamser, October 12, 1978

This National Level Arbitration was once again on Article 7.3. Gamser references Arbitrator Garrett's award previously discussed. He goes on to state that in major part, the disposition of this case can be determined by reference to the views expressed by Arbitrator Garrett. The Arbitration rules that four (4) part-time flexibles be converted to five (5) days a week and eight (8) within 10 hours per day for a trial period and be reviewed after the six month period to see if any adverse impact upon the efficiency of the operation or has resulted in undue increased costs. If no significant in efficiency occur or increased costs, then they are converted permanently. Thereafter or sooner, the local parties are to meet and continue this process of conversion. Once again, the conversions occur based on overall work hours of the part-time flexibles.

National Level Arbitration H1T-3A-C-41312, Arbitrator Collins, May 19, 1986

Arbitrator Collins' National Level Award is one of the most misapplied by the U.S. Postal Service in regard to Article 7.3.B. The Arbitrator, within his dicta, says that Article 7.3.B applies to part-time flexible employees and not part-time regular employees. Nowhere within the award does he state that you cannot use multiple part-time flexibles to achieve a full-time conversion. In fact, he opines that the U.S. Postal Service did not violate Article 7.3.B with respect to posting two (2) part-time regular custodial positions. Furthermore, later rulings after this award indicate you can combine part-time flexible hours to achieve maximization to full-time. (B94C-4B-C97055993 and B94C-4B-C98033154. In his discussion for B94C-4B-C97055993, he states, "the Postal Service argues that the MOU contemplates that the requirements for conversion must be met by one particular part-time flexible and that aggregation of part-time flexible hours is improper. The Arbitrator does not agree. Not only can the language of the MOU easily be read to contemplate aggregation, but there is a respectable body of regional arbitration awards which while it deals specifically with Article 7.3.B of the National Agreement, can be read approving the use of aggregation for maximization issue generally."

National Level Arbitration, Q94C-4Q-C96096822 and Q94C-4Q-C96096823), Arbitrator Byars, October 6, 2009

This award has also been misrepresented by the U.S. Postal Service in regard to Article 7.3.B and the usage of aggregate part-time flexible hours. This award eliminated the usage of part-time regular, transitional, casual and overtime hours of full-time regular employees. What this award did not eliminate is the combing of part-time flexible hours to prove a full-time duty assignment exists. The U.S. Postal Service's brief for the Byars National Level award clearly never argues that part-time flexible hours cannot be combined with other part-time flexible hours. Rather, the U.S. Postal Service's brief is for the exclusion of all hours besides part-time flexible hours. Critical review of the brief reveals this. The Byars summary is somewhat misleading and has been misinterpreted without the submission of the U.S. Postal Service's brief. Byars cites the National Level Collins award previously mentioned and agrees that Article 7.3.B. applies strictly to the relationship between full-time regular and part-time flexible employees. Byars had previously ruled in Regular Panel Arbitration (C98C-4C-C0002966) that "management cannot avoid its

obligation by carefully scheduling part-time employees to avoid a grievance that requires another conversion from part-time flexible to full-time". She went on to state, "by so doing, the Postmaster violated the clear intent of Article 7.3.B and demonstrated that she interpreted Article 7.3.C as the only circumstances justifying conversion."

JCIM HUB AGREEMENT

The Questions and Answers for part-time flexible clerks working in other installations is located in the JCIM under Article 37. Question 19, as agreed to by both parties, is clear: "Do the work hours of a part-time flexible clerk from another installation count for the purpose of maximization under Article 7.3.B of the National Agreement?" Response: "YES, the part-time clerk's hours are counted in the office where the work is performed. For the purposes under the full-time Flexible Memorandum, only the hours worked in the home office by the individual part-time flexible clerk count."

The language is clear that HUB part-time flexible hours may be combined with a home office part-time flexible under Article 7.3.B. It is noted that the new JCIM 2020 contains this language after all National Level Awards have been rendered.

National Level Award Q15C-4Q-C18148486, Arbitrator DAS, July 24, 2020

The National Level DAS award did not change anything that was ruled in the National Level Byars Award. DAS, in his background, cites the Byars as testified to by Mike Morris, former Director of Industrial Relations. Morris testified that Article 37.3.A.1 was put in place to remedy or overturn the Byars 2009 National Level Award. The Byars award limited under Article 7.3.B to the combining of only PTF hours. Das proceeded to cut and paste the Byars summary as noted in her award in footnote number 4. In Arbitrator Das' findings he cites the Byars award as an Article 7.3.C case (which it was not). He makes no other reference to the Byars National level award. He did not disturb anything in Article 7.3.B. Furthermore, in footnote 8 he states, I express no opinion on whether this provision in a particular case might require the Postal Service create an additional assignment for bid- not just modify an existing duty assignment-in a situation where the evidence

demonstrates that such an assignment could be created from PSE and other work hours that is more desirable(hours/schedule) than one or more existing duty assignments. The parties did not focus on or sufficient address that question in the proceeding." This is in regards to Article 37.3.A.1 and provides for situations where jobs may be created using all available hours.

MEMORANDUM OF UNDERSTANDING BETWEEN THE UNITED STATES POSTAL SERVICE AND THE AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Maximization/Full-Time Flexible - APWU

Where a part-time flexible has performed duties within his/her craft and occupational group within an installation at least 40 hours a week (8 within 9, or 8 within 10, as applicable), five (5) days a week, over a period of six (6) months, the senior part-time flexible shall be converted to full-time status. This criteria shall be applied to postal installations with 125 or more work years of employment. It is further understood that part-time flexibles converted to full-time under this criteria will have flexible reporting times, flexible nonscheduled days, and flexible reporting locations within the installation depending upon operational requirements as established on the preceding Wednesday. The parties will implement this in accordance with their past practice.

Date: July 21, 1987

MEMORANDUM OF UNDERSTANDING BETWEEN THE UNITED STATES POSTAL SERVICE AND THE AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Non-Traditional Full-Time (NTFT) Duty Assignments The following rules shall apply concerning Non-Traditional Full-Time (NTFT) duty assignments:

5. Non-traditional full-time assignments will have no more than a 1-hour lunch. Exception: in post offices (Level 20 and below) where necessary to accommodate the conversion of PTFs to full-time status, split shifts will be permissible.

8. Part-time flexible (PTF) employees may work in Function 4 offices Level 20 and below. Offices, Level 20 and below, remain subject to the Article 7.3.B obligations to maximize the number of

full-time employees and minimize the number of part-time flexible employees who have no fixed work schedules.

It is important to take note of the prior two MOUs cited. They may be useful in asking for a Non-Traditional duty assignment when a Traditional assignment is not warranted. or a Full-Time Flexible assignment in 125 or more man-year offices.

JCIM Article 7.1.A

The regular workforce is comprised of two (2) categories of employees, full-time and part-time. A full-time employee is entitled to be regularly scheduled five (5) eight-hour days in a service week. An exception exists for a full-time employee in a non-traditional full-time (NTFT) duty assignment, who is scheduled in accordance with the bid assignment as posted. NTFT duty assignments may have regular weekly schedules with total hours between 30-48 hours in accordance with the NTFT work rules as outlined in the NTFT MOU. Any change in the total weekly hours as posted, would require that the NTFT duty assignment be reposted in accordance with Articles 37.3.A.4.c.(6). Job postings will contain the following language: "For retirement purposes, NTFT assignments of less than forty (40) hours a week are considered part-time work." Non-traditional full-time (NTFT) duty assignments are eliminated in Function 1 (mail processing) and Function 3 (MVS) and will be reposted as traditional full-time duty assignments. Current four (4) day a week/ten (10) hour a day duty assignments may remain in place if the Local parties agree. Local parties may agree upon more such assignments under the Modified Work Week Memo. A part-time regular employee (Maintenance Craft) is entitled to be assigned to a regular schedule of less than forty hours in a service week. A part-time flexible employee (Clerk Craft in post offices Level 20 and below and in the MVS Craft) is available to work flexible hours as assigned by management. There are no NTFT duty assignments in the Maintenance Craft or in the MVS Craft.

Article 37.3.A.1

A. Newly established and vacant Clerk Craft duty assignments shall be posted as follows:

1. All newly established Clerk Craft duty assignments shall be posted to craft employees eligible to bid within 28 days. All vacant duty assignments, except those positions excluded by the provisions of Article 1, Section 2, shall be posted within 28 days unless such vacant duty assignments are reverted. Every effort will be made to create desirable duty assignments from all

available work hours for career employees to bid. a. Full-time duty assignments. (1) Newly established full-time duty assignments are posted to full-time employees eligible to bid.

In summary, when grieving or arbitrating an Article 7.3.B case on the merits it is essential to provide all TACS rings in CSV and PDF format for the employees in question, as well as, utilizing the MDAT program. MDAT uses the Postal Service's actual clock rings data.

Please enclose this Article 7.3.B Mission Statement and refer and enclose the MDAT Mission Statement when filing your grievance.

The MDAT software program has been modified so as to be consistent with the Das July 2020 national arbitration award and incorporates Article 37.3.A.1, Article 7.3 and the NTFT MOU, as well as other contractual provisions.

Employees have been chosen to run in the MDAT program, in search of a more desirable duty assignment, utilizing employees on the tour, consistent with contractual language. There is NO broad utilization of employees and OTHER contractual provisions have been cited consistent with the Das arbitration decision. In short, the Das award supports the Union's position. Footnote number #8 of the Das award is also applicable based on local fact circumstances.

Respectfully submitted,



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American Postal Workers Union, AFL-CIO

April 5, 2021